

Mediation Preparation Checklist and SOP

Internal policy / SOP - for demo purposes only

1. Purpose

This SOP outlines the preparation requirements and procedural steps for all family-law mediation sessions. It applies to all attorneys preparing clients for court-ordered or voluntary mediation.

2. Scheduling and Pre-Mediation Notice

Once mediation is scheduled, the attorney must send written confirmation to the client at least 21 days before the mediation date. The notice must specify the mediator, location or virtual platform, expected duration, and the list of documents required for the session.

3. Required Documents

The client must produce the following at least 14 days before mediation: complete financial disclosure forms (assets, liabilities, income, expenses), three years of tax returns, current pay stubs, bank statements covering the prior 12 months, retirement account statements, business valuations if applicable, and any appraisals of real property or significant assets. Missing or incomplete disclosures shall be raised with the opposing counsel in writing prior to mediation.

4. Issue List

The attorney shall prepare a written issue list categorizing each disputed matter as: (a) likely-to-resolve, (b) requires-negotiation, or (c) high-conflict / may require court intervention. This list shall be reviewed with the client at least seven days before mediation.

5. Settlement Posture

Before mediation, the attorney shall meet with the client to develop a written settlement posture, including target outcome, acceptable range, and absolute walk-away position for each issue. The posture memo is for internal use only and shall not be shared with the mediator or opposing counsel.

6. Day-of-Mediation Conduct

The attorney shall arrive at least 30 minutes before the scheduled start. During the session, the attorney's role is to advise the client on the legal implications of proposed terms, draft proposed language in real time, and ensure that any agreement memorialized at the table is enforceable and complete. All proposed agreements must be reviewed by the attorney before the client signs.

7. Memorandum of Understanding

If mediation results in an agreement, the parties shall execute a Memorandum of Understanding (MOU) at the close of the session. The MOU is converted into a formal Marital Settlement Agreement within 14 days, drafted by the prevailing party's counsel, and reviewed by both parties before submission to the court.

8. Follow-Up Within Seven Days

Within seven days of mediation, regardless of outcome, the attorney shall: (a) send the client a written summary of what was agreed or unresolved; (b) calendar all follow-up filings and deadlines; (c) document any unresolved issues and the planned next step (further mediation, discovery, or contested hearing).